

Revised January 3, 2024



McMURTRY

CONSTITUTION

Article I: Establishment of McMurtry College

Section One: Purpose

In the tradition of Rice University, we the students establish McMurtry College as a community of equals to foster a supportive, fulfilling, and enriching environment. The College shall provide each member with the opportunity to pursue their passions and build meaningful relationships. We shall uphold this purpose through a system of self governance representing the ideals, voice, and direction of the members of McMurtry College.

Section Two: Membership

1. Designation of Membership: Undergraduate students formally matriculated into the college or officially transferred shall be considered full members of McMurtry College. Full membership is rescinded for those who have transferred to another college.
2. Rights of Membership
 - a. All members shall have the rights of participation, initiative, mutual respect, representative government, petition, individuality, and vote.
 - b. All members are entitled to the full benefits and privileges of the College.
 - c. Membership benefits and privileges may, as determined through appropriate legislation, be granted to persons other than those expressly granted membership under this Constitution, as long as such benefits and privileges do not infringe upon the rights of College members.
 - d. No conduct or method of initiation that willfully or recklessly endangers the physical or mental health of any person shall be tolerated.

Article II: Organization of the McMinistry

Section One: Establishment

1. Governance of the college is vested in the McMinistry, a student-led system of self-governance composed of voting and non-voting members.
2. Responsibilities: McMinistry members shall represent and carry out the concerns, interests, and needs of the college with integrity, expediency, and efficiency. It is the role of the McMinistry to manage the budget, disseminate information, foster a safe and nurturing community, and better the College as a whole.

Section Two: Voting Members

The Voting Members of the McMinistry shall consist of the Executive Council, the People's Council, and the Senator.

1. Executive Council (EC)

The Executive Council is responsible in executing the concerns, interests, and needs of the College based on their designated responsibilities.

 - a. President:
 - i. The President shall be the acting leader of the College and liaison to Rice University
 - ii. The President reserves the right to establish new committees and oversee the McMinistry
 - iii. The President shall not vote except in the event of a tie.
 - b. Prime Minister
 - i. The Prime Minister shall be responsible for overseeing Event-Based Committees.
 - ii. The Prime Minister shall be responsible for organizing Town Hall meetings.
 - c. Internal/External Vice Presidents

- i. The Internal Vice President shall be responsible for overseeing Facilities-Based Committees.
 - ii. The Internal Vice President shall be responsible for executing the Parking Jack.
 - iii. The Internal Vice President shall be responsible for coordinating McMurtry PODS storage over the summer break
 - iv. The External Vice President shall be responsible for overseeing Inter-College Committees.
- d. Treasurers
 - i. The Treasurers shall be responsible for managing and recording the budget of the College. The Treasurers shall ensure that the financial records are available to the College.
 - ii. The Treasurers shall meet with the College Coordinator and update the college budget no less than once per week.
 - iii. Terms of the Treasurers
 - a. There will be two Treasurers at all times.
 - b. Each Treasurer will serve for two years. The terms of each Treasurer shall be staggered by one year and elections will alternate between one and the other each year.
 - c. The Treasurer serving their second year in the position is the Senior Treasurer and will serve in the capacity of a mentor to the Junior Treasurer (the one serving their first year in the position). The Senior Treasurer has the responsibility of training the Junior Treasurer in addition to serving in the usual capacities of the position of the treasurer.
 - d. The Senior Treasurer shall have guaranteed housing at McMurtry (see Housing Bylaws).
 - e. Note: The title of Senior and Junior does not refer to the grade level of the student serving in this position, but rather to the amount of time they have served in the position.
- e. Secretary(s)
 - i. The Secretary(s) shall be responsible for disseminating pertinent information to all members of the College.
 - ii. The Secretary(s) shall be responsible for recording and sharing notes from EC, PC, and Town Hall meetings.
- 2. People's Council (PC)

The People's Council is responsible for voicing the concerns, interests, and needs of its constituents.

 - a. At-Large Representative
 - i. The At-Large Representative shall be responsible for gauging College opinion on pertinent topics and setting a comprehensive agenda for the College.
 - ii. The At-Large Representative shall be the acting leader of the PC
 - iii. The At-Large Representation shall sit on the EC as a non-voting member to act as a liaison between the EC and PC
 - b. Hall Representatives, O.C. Representatives, and Class Representatives
 - i. The Hall Representatives, Off-Campus Representatives, and Class Representatives (including First Year, Sophomore, Junior, and Senior Representative) shall be responsible for representing their constituents, helping to set the college agenda, and fostering camaraderie within their community.
- 3. SA Senator
 - a. The SA Senator shall act as a liaison to the Student Association.
 - b. The SA Senator shall be responsible for disseminating information of University-wide importance.
 - c. The SA Senator shall maintain communication with the EC and attend EC meetings.

Section Three: Non-Voting Members

- 1. RPC Representative
 - a. The RPC Representative shall act as a liaison to the Rice Program Council.
 - b. The RPC Representative shall report to the President of RPC.
- 2. Honor Council Representative
 - a. The Honor Council Representative shall act as a liaison to the Honor Council.

- b. The Honor Council Representative shall report to the Honor Council Chairperson.
- 3. Committee Heads
 - a. The College Committees shall be responsible for specific and necessary factions of the college.
 - b. Event-Based Committees
 - i. Event-Based Committees shall be responsible for holding events representing the interests of the college.
 - ii. Event-Based Committees shall be overseen by the Prime Minister.
 - c. Facilities-Based Committees
 - i. Facilities-Based Committees shall be responsible for maintaining and improving college facilities and operations.
 - ii. Facilities-Based Committees shall be overseen by the Internal Vice President.
 - d. Inter-College Committees
 - i. Inter-Collegiate Committees shall be responsible for cultivating University spirit, acting as liaisons of the College, and representing the College's interests across the University
 - ii. Inter-Collegiate Committees shall be overseen by the External Vice President.
- 4. Parliamentarian
 - a. The Parliamentarian shall be present at all Town Hall meetings.
 - b. The Parliamentarian shall advise on procedure, keep order, and collect votes at all Town Hall meetings.
 - c. The Parliamentarian shall be overseen by the President.
 - d. The Parliamentarian shall maintain communication with the EC, attending EC meetings in a non-voting capacity to advise on rules and procedure.
 - e. The Parliamentarian shall ensure that the college's elections run smoothly and take place in a timely manner.
- 5. Student Housing Jack Coordinator(s)
 - a. The Student Housing Jack Coordinator(s) shall be responsible for executing Housing Jack.
 - b. The Student Housing Jack Coordinator(s) shall be unanimously appointed by IVP, Magisters, and College Coordinator.
 - c. Student Housing Jack Coordinator(s) are to serve one-year terms plus serve in the capacity of a mentor to the incoming Housing Jack Coordinator(s) during the Spring Semester. During the Student Housing Jack Coordinator(s)' mentoring period, they have the responsibility of training the incoming Student Housing Jack Coordinator.
 - d. The Student Housing Jack Coordinator(s) shall be overseen by the IVP, Magisters, and College Coordinator.
- 6. The Joint Canines of Staff
 - a. The Joint Canines of Staff consists of the Dogs of McMurtry.
 - b. The body shall consist of:
 - i. The Chair for Canine Friendship
 - ii. The Internal Vice President for Canine Affairs
 - iii. The External Vice President for Canine Shenanigans
 - iv. And other council members as determined by the members of McMurtry.
 - c. The body may host events as deemed to be properly supported by a committee or McMinistry member with an existing budget and with the proper consent of each participating dog's family.
 - d. Any member of the Joint Canines of Staff may be present at any meeting pertaining to the McMinistry, with the consent of all members present.
 - e. In the event a member of the Joint Canines of Staff barks during a session of the Town Hall, the People's Council, or the Executive Council, that session is to be adjourned sine die until deemed restarted by the session's presiding members to complete the business of that session.

Article III: Procedures

Section One: Elections and Appointments

- 1. The President, Prime-Minister, Internal Vice President, External Vice President, Treasurer(s), Secretary(s), At-Large Representative, Class Representatives, O.C Representatives, Hall Representatives, SA Senator, RPC Representative, the Honor Council Representative, and the Chief Justice shall be elected as prescribed in the By-Laws.
- 2. All committee heads, the Parliamentarian, and the University Court Representative shall be appointed by the President, Prime

Minister, Internal Vice President, and/or External Vice President, and approved by a simple majority of the People's Council.

Section Two: Vacancies in Elected Officials

1. In the event of a vacancy in an elected position, the position shall be filled by a special election under the same procedures by which the position was originally filled. The position shall be filled no later than two weeks after the vacancy.
2. In the interim, the position shall be filled by EC appointment.

Section Three: Voting

1. Unless otherwise specified, in all proceedings of the college or any component thereof, the vote required to carry a measure shall be relative to the number of eligible votes cast.
2. No member may participate in a vote concerning his or her own appointment, removal, compensation, or award.

Section Four: Annual Budget

1. The Annual Budget shall be proposed by the EC with recommendations from the PC
2. The Annual Budget shall be ratified by a majority ruling of all voting members.
3. There shall be a bi-annual midterm budget review in March and October, during which time funds can be reallocated by the EC and PC in conjunction with committees (except for in the event of emergency).

Section Five: Town Hall

1. Town Halls shall be held to provide pertinent information and discuss important topics with the McMurtry college members.
2. Town Halls shall allow College members the opportunity to express personal opinions on pertinent topics.
3. Town Halls are open to all who wish to attend.

Article IV: College Court

Section One: Purpose

1. To uphold the McMurtry Constitution and By-Laws, Court Code of Procedures, as well as the University Code of Conduct, we the students hereby establish a Court system comprised of a Chief Justice and Associate Justices. The Court shall strive to protect the College, provide order, and facilitate safe interactions of McMurtry members.
2. Responsibilities
 - a. The Court shall uphold the rules set forth by the McMurtry Court Code of Procedures, Judicial Code, and Alcohol Policy
 - b. The Court shall be responsible for maintaining written documents outlining decisions. All College Court records shall be maintained in strict confidentiality
 - c. The Court shall impose sanctions in accordance with the Court Code of Procedures.
 - d. The Court shall serve as the liaison between McMurtry, Rice University Police Department, Student Judicial Programs, and University Court.

Section Two: Members

1. Chief Justice
 - a. The Chief Justice shall be the acting leader of the College Court.
 - b. The Chief Justice shall enforce the responsibilities of the Court.
 - c. The Chief Justice shall maintain communication with the EC.
2. Associate Justices

- a. The Associate Justices shall be appointed by the Chief Justice
- b. The Associate Justices shall be approved by both the President and the Magisters
- c. The approval shall occur at least one week prior to the announcement to the College
- d. There shall be no less than four Associate Justices in the College Court.

Section Three: Powers and Duties

1. Chief Justice
 - a. The Chief Justice is the highest ranked member of the Court system.
 - b. The Chief Justice is tasked with maintaining College expectations of behavior.
 - c. The Chief Justice shall live on campus for a two-thirds majority of his or her term.
2. Associates Justices
 - a. The Associate Justices exercise on extension of the Chief Justice role, with the exception of the ability to impose sanctions.
 - b. Each Associate Justice is selected, as described in the Court Code of Procedure, with an effort to reflect the diversity of McMurtry College as a whole.
 - c. At least **4** Associate Justices must sustain on-campus housing
3. Court By-Laws
 - a. The Court shall have a Code of Procedure for governing and directing the University Code of Conduct.
 - b. Revisions to the Court Code of Procedure require a three-fourths majority of the College Court.
4. Separation
 - a. The Court shall act as a separate entity from the McMinistry, conducting hearings separate from the EC or PC's approval or scrutiny, and vice versa.
 - b. The Court members may be considered as advisory members to the EC or PC upon request.

Article V: Magisters and Associates

Section One: Magisters

1. Magisters shall act as advisors to all members of the College.
2. Magisters shall act as University liaisons.

Section Two: Resident Associates

1. Resident Associates, including Head Resident Fellow(s), shall act as advisors to all members of the College.

Section Three: Non-Resident Associates

1. Non-Resident Associates shall act as advisors to all members of the College while living in the community at large.
2. Faculty Associates are drawn from the faculty and lecturers of the University
3. University Associates are drawn from the staff of the University
4. Community Associates are drawn from the greater community and may include alumni.
5. Rice undergraduate alumni must wait a minimum of 4 years to apply for an associate position.
6. Non-Resident associates are appointed by the Magisters in consultation with the McMurtry Associates Committee.

Article VI: Referendum and Impeachment

Section One: Referendum

1. The Elections Committee shall hold a referendum on any act or legislation by the McMinistry within eight days of

- receiving a petition for referendum.
- 2. The petition must be signed by at least one-tenth of the total membership of the College.
- 3. A simple majority of the votes cast shall be necessary to sustain the petition in referendum. The election shall have no less than one-third participation of all College members.
- 4. If a measure is not sustained by the referendum, it may be returned to the McMinistry for reconsideration.

Section Two: Impeachment and Removal

- 1. Impeachment of any member of the McMinistry may be brought about by a petition representing one-fourth of the related members constituents.
- 2. Impeachment petitions shall be sustained by a two-thirds majority of the voting members.

Article VII: Amendment

Section One: Amendment

- 1. Amendments shall be proposed by petition with signatures from one-tenth of the College at large.
- 2. A two-thirds majority of the votes cast shall be necessary to sustain the petition in amendment. The election shall have no less than one-third participation of all College members.

Section Two: By-Laws

- 1. A system of By-Laws is established as the functional addendum to the Constitution, serving as modifiable and active rules and standards for McMurtry College.
- 2. Modifications may be passed by a simple majority ruling of the voting members of the McMinistry

Section Three: Supersedure

- 1. The Constitution shall respect any law, code, or ordinance set forth by Rice University.
- 2. The Constitution shall supersede all prior and contemporaneous agreements and understandings, oral or written.
- 3. Revisions of the Constitution shall have superseding authority over the By-Laws and other rules of the College.

Section Four: Severability (Salvatorius)

- 1. If any provisions of the Constitution or the By-Laws is deemed illegal or otherwise unenforceable, the validity and the enforceability of the remaining provisions shall not be in any way impaired.

Section Five: Approbation

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